

SFIO vs. Adarsha Build Estate. COMA No. 05-2019

Present: Shri Hari Kishan, Senior Prosecutor for SFIO.

Accused Vaibhav, Rohit Modi , Bharat Modi, Rajeshwar Singh , Ishwar, Singh, Bharat Dass, Priyanka and Vivek Purohit, are in custody
Accused Virender, Rahul and Mukesh Kumar and not produced
Accused Surender not produced from Bhondsi Jail.

Complaint case received by way of transfer. It be checked and registered.

The jail authorities from Jaipur have produced accused Vaibhav, Rohit Modi, Bharat Modi, Rajeshwar Singh , Ishwar Singh, Bharat Dass, Priyanka and Vivek Purohit in custody. As far as accused Virender Modi is concerned, it has been submitted by the jail authorities that the said accused could not be produced today being on interim bail till 17.04.2021.

Similarly, in its letter, Superintendent Jail, Jodhpur, has submitted that the accused Rahul and Mukesh Modi though were to be produced before this Court for compliance of its order but for want of Escort, the jail authorities have been unable to produce the same. In his reply to show cause notice, the Superintendent, District jail Jodhpur has regretted inconvenience so caused because of non production of the said two accused.

Accused Virender Modi is stated to be on interim bail as per jail authorities but this Court never granted such bail, hence it was duty of the accused to have appeared before this Court. Accordingly, the jail authorities, Jodhpur are required to explain as to under what circumstances Virender Modi was allowed to be proceeded interim bail till 17.04.2021, whereas he was legally bound to be produced being in custody in this case before this Court today. Without commenting further on this issue, let the reply of the Superintendent, District Jail Jodhpur is awaited for next date of hearing i.e. 30.04.2021 and directions are also

issued to the said jail authorities to produce Virender through video conferencing, he being in custody in the case in hand. Let all the above named accused be produced through video conferencing by the respective jails on dated 30.04.2021 at about 12:00 p.m. the reply of Superintendent Jail Jodhpur regarding non production of Virender Modi be sent by him through Senior Officer of the jail in person for consideration. Let copy of this order be provided to the representative of the jail authorities, Jodhpur who has come with the reply to show cause notice issued earlier.

(Phalit Sharma),
ASJ/Gurugram
UID Code No. HR105

Date of order : 16.04.2021

Neeru: